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IN THE SUPERIOR COURT OF THE STATE OF ARIZONA

IN AND FOR THE COUNTY OF COCHISE

STATE OF ARIZONA

Plaintiff,

vs.

MICHAEL W. BENNETT

Defendants.

Case No. CR201600483

JUDGE WALLACE R. HOGGATT  
DIVISION III

STATE'S RESPONSE TO  
DEFENDANTS' MOTIONS TO  
SUPPRESS

COMES NOW the State of Arizona, by and through Brian M. McIntyre, Cochise County Attorney, and Roger H. Contreras, his Deputy, and hereby responds to the Motion to Suppress filed by Defendant, Michael W. Bennett, on August 25, 2016. This Response is based on this notice, the attached Memorandum of Points and Authorities, the entire record in this matter, and the testimony and evidence admitted during the Evidentiary Hearing on Defendant's Motions, presently scheduled for Tuesday, September 13, 2016 at 09:00 in Division III of this Court.

RESPECTFULLY SUBMITTED this 9th day of September, 2016.

COCHISE COUNTY ATTORNEY

By:

Roger H. Contreras  
ROGER H. CONTRERAS  
Deputy County Attorney



## MEMORANDUM OF POINTS AND AUTHORITIES

Defendants' Motions each seek suppression of any evidence gathered by the Cochise County Sheriff's Office after conducting a Knock and Talk with Defendant on April 18, 2016. Defendant argues that such evidence was gathered illegally and in violation of his rights. Defendant's Motion is without merit and must be denied in its entirety.

### FACTS:

Defendant's Statement of Facts is sufficiently accurate, with the following exception: References to Deputy Encinas in the second paragraph describe investigative conduct performed by Detective Hudson of the Cochise County Sheriff's Office ("CCSO").

### ARGUMENT:

#### **A. Curtilage**

Where the Government obtains information by physically intruding on a constitutionally protected area, a "search" within the original meaning of the Fourth Amendment has undoubtedly occurred." *U.S. v. Jones*, \_\_ U.S. \_\_, 132 S.Ct. 945, 951, 181 L.Ed.2d 911, \_\_ (2012). Fourth Amendment protection extends to the curtilage of a home. *Oliver v. United States*, 466 U.S. 170, 180, 104 S.Ct. 1735, 1742, 80 L.Ed.2d 214, \_\_ (1984). Courts have not specifically defined what areas are within a home's curtilage. Rather, when attempting to resolve the issue with respect to certain areas they have generally considered four factors including: "the proximity of the area claimed to be curtilage to the home, whether the area is included within an enclosure surrounding the home, the nature of the uses to which the area is put, and the steps taken by the resident to protect the area from observation by people passing by." *U.S. v. Dunn*, 480 U.S. 294, 301, 107 S.Ct. 1134, 1139, 94 L.Ed.2d 326, \_\_ (1987).

However, it is well established that residents generally do not have a legitimate expectation of privacy in a path across their driveway to and including their front porch and front door, because that area is implicitly open to the public, thereby "necessarily negat[ing] any reasonable expectancy



1 of privacy in regard to observations made there.” State v. Olm, 223 Ariz. 429, 433, 224 P.3d 245,  
2 249 (App. Div. 2, 2010). The Knock and Talk performed by the deputies did not unreasonably  
3 intrude within a protected area of Defendant’s home. Therefore, it did not violate Defendant’s  
4 rights.

5 **B. Protective Sweep**

6 Once the officers requested and were denied consent to search the residence by Defendant,  
7 they indicated that they were going to obtain a Search Warrant and that they already had probable  
8 cause upon which that Warrant could be based. That statement was not made for the purpose of  
9 coercing consent. In fact, it is clear that these officers would have obtained the Search Warrant  
10 even if consent had been granted after it was initially denied. However, Defendant informed them  
11 that there was an additional person in the house at the time.

12 It is clear that an officer may prevent an individual from entering his home (thereby  
13 detaining him) if the officer is waiting for a Search Warrant to be issued (Illinois v. McArthur, 531  
14 U.S. 326, 121 S.Ct. 946, 148 L.Ed.2d 838 (2001)), and that the occupants of a residence being  
15 searched pursuant to a Search Warrant can be detained for the duration of the search (Michigan v.  
16 Summers, 452 U.S. 692, 101 S.Ct. 258, 769 L.Ed.2d 340 (1981)).

17 In order to ensure the safety of the officers securing the residence pending issuance of a  
18 Search Warrant and/or to maintain the integrity of evidence easily destroyed, officers may conduct  
19 a protective sweep of the residence to be searched. Protective sweeps of a residence may be  
20 conducted as routine. United States v. Castillo, 866 F.2d 1071, 1079 (9th Cir., 1989). However,  
21 “articulable facts which, taken together with the rational inferences from those facts, would warrant  
22 a reasonably prudent officer in believing that the area to be swept harbors an individual posing a  
23 danger” justifies such a protective sweep pending a warrant. Maryland v. Buie, 494 U.S. 325, 334,  
24 110 S.Ct. 1093, 108 L.Ed.2d 276 (1990).

25 Defendant’s argument that officers could not use the information gathered during the  
26 protective sweep as additional information forming probable cause, suggesting that the officers  
27 were not in a place where they had a legal right to be when they observed items whose evidentiary  
28



1 value was immediately apparent (*State v. Apelt* 176 ARiz. 349, 861 P.2d 634 (1993)), is simply  
2 bootstrapping. Once the officers were justified in conducting the protective sweep of the residence  
3 (by Defendant's disclosure that there was an additional person present therein at the time), anything  
4 they observed in plain view during their limited entry of the home to ensure their safety (looking  
5 only in places where a person might be concealed (*Buie*)) may be properly included in the Search  
6 Warrant Affidavit.

7 Even if a search warrant is later found to be invalid, the fruits of a search must not be  
8 suppressed if the officers executed the warrant in good faith. 5C A.R.S. § 13-3925; *United States*  
9 *v. Leon*, 468 U.S. 897, 920-21, 104 S.Ct. 3405, 3419 (1984). "[S]earches pursuant to a warrant  
10 will rarely require any deep inquiry into reasonableness,' *Illinois v. Gates*, 462 U.S., at 267, 103  
11 S.Ct., at 2347, for 'a warrant issued by a magistrate normally suffices to establish' that a law  
12 enforcement officer has 'acted in good faith in conducting the search.' *United States v. Ross*, 456  
13 U.S. 798, 823, n. 32, 102 S.Ct. 2157, 2172, n. 32, 72 L.Ed.2d 572 (1982). Nevertheless, the  
14 officer's reliance on the magistrate's probable-cause determination and on the technical sufficiency  
15 of the warrant he issues must be objectively reasonable, cf. *Harlow v. Fitzgerald*, 457 U.S. 800,  
16 815-819, 102 S.Ct. 2727, 2737-2739, 73 L.Ed.2d 396 (1982), and it is clear that in some  
17 circumstances the officer will have no reasonable grounds for believing that the warrant was  
18 properly issued. *U.S. v. Leon*, 468 U.S., at 922-923, 104 S.Ct., at 3420.

19 Here, Detective Hudson "obtained a warrant from a judicial officer 'upon probable cause,  
20 supported by Oath or affirmation, and particularly describing the place to be searched, and the  
21 things to be seized.' It is vital that having done so [his] actions should be sustained under a system  
22 of justice responsive both to the needs of individual liberty and to the rights of the community."  
23 *U.S. v. Ventresca*, 380 U.S. 102, 112, 85 S.Ct. 741, 747-748 (1965).

24 Assuming, *arguendo*, that there were some unconstitutional conduct, Defendant must  
25 demonstrate that suppression here is warranted despite the significant cost to society. *Herring v.*  
26 *United States*, 555 U.S. 135, 144, 129 S.Ct. 695, 702, 172 L.Ed.2d 496 (2009) ("Our cases  
27 establish that such suppression is not an automatic consequence of a Fourth Amendment violation.  
28



1 Instead, the question turns on the culpability of the police and the potential of exclusion to deter  
2 wrongful police conduct." "[t]o trigger the exclusionary rule, police conduct must be sufficiently  
3 deliberate that exclusion can meaningfully deter it, and sufficiently culpable that such deterrence is  
4 worth the price paid by the justice system. [T]he exclusionary rule serves to deter deliberate,  
5 reckless, or grossly negligent conduct, or in some circumstances recurring or systemic negligence."  
6 "Held: When police mistakes leading to an unlawful search are the result of isolated negligence  
7 attenuated from the search, rather than systemic error or reckless disregard of constitutional  
8 requirements, the exclusionary rule does not apply." "The rule is not an individual right and  
9 applies only where its deterrent effect outweighs the substantial cost of letting guilty and possibly  
10 dangerous defendants go free." *U.S. v. Leon*, 468 U.S. 897, 104 S.Ct. 3405, 82 L.Ed.2d 677 (July  
11 5, 1984).) The court must essentially conduct a cost-benefit analysis to determine if suppression's  
12 benefit outweighs the significant societal cost. As the Supreme Court said in *Leon*, "an assessment  
13 of the flagrancy of the police misconduct constitutes an important step in the calculus" of applying  
14 the exclusionary rule. 468 U.S., at 911.

15 **C. Voluntariness of Defendants' Statements.**

16 Although Defendant does not specifically raise the issue of voluntariness, the Court must  
17 always determine voluntariness of a defendant's statements before they are admissible.

18 "Voluntariness and *Miranda* are two separate inquiries." *State v. Montes*, 136 Ariz. 491,  
19 494, 667 P.2d 191, 194 (1983). Preclusion of evidence obtained in violation of *Miranda* is based  
20 on the Fifth Amendment privilege against self-incrimination. *In re Jorge D.*, 202 Ariz. 277, 281  
21 ¶19, 43 P.3d 605, 609 (App. Div. 1, 2002). Preclusion of involuntary statements is based on the  
22 Due Process Clause of the Fourteenth Amendment and applies to statements that are the product of  
23 coercion or other methods offensive to due process. *Id.* However, the State will demonstrate that  
24 Defendant made statements that were not the product of custodial interrogation before the search  
25 and then after he had voluntarily waived his *Miranda* rights.

26 Confessions are presumed to be involuntary, and the State has the burden to prove by a  
27 preponderance of the evidence that a confession was voluntary and not the product of physical or  
28



1 psychological coercion. State v. Amaya-Ruiz, 166 Ariz. 152, 164, 800 P.2d 1260, 1272 (1990); In  
2 re Timothy C., 194 Ariz. 159, 162, ¶13, 978 P.2d 644, 647 (App. Div. 1, 1998); Navajo County Juv.  
3 Action No. JV91000058, 183 Ariz. 204, 206, 901 P.2d 1247, 1249 (App. Div. 1, 1995). "A  
4 confession is rendered involuntary by any of the following factors: (1) impermissible police  
5 conduct, (2) coercive pressures that are not dispelled, or (3) a confession derived directly from a  
6 prior involuntary statement." Amaya-Ruiz, 166 Ariz. at 164 (1990), citing, State v. Rivera, 152  
7 Ariz. 507, 513, 733 P.2d 1090, 1096 (1987). To be deemed "voluntary," a statement or confession  
8 must not have been induced by any "direct or implied promises, however slight" (State v. Tapia,  
9 159 Ariz. 284, 290, 767 P.2d 5, 11 (1988)), "nor by the exertion of any improper influence" or  
10 physical threats (Malloy v. Hogan, 378 U.S. 1, 7, 12 L. Ed. 2d 653, 84 S. Ct. 1489 (1964)). A  
11 *prima facie* case for admission of a confession is made when the State produces evidence that the  
12 confession was obtained without threat, coercion or promises of immunity or a lesser penalty. State  
13 v. Jerousek, 121 Ariz. 420, 424, 590 P.2d 1366, 1370 (1979).

14 In determining whether a confession is voluntary, the court must consider the totality of the  
15 circumstances and the effect they had upon the defendant's will. Schneekloth v. Bustamonte, 412  
16 U.S. 218, 226, 93 S.Ct. 2041, 2047 (1973).

17 Here, Defendant has expressed no reason to conclude that his statements should be  
18 suppressed as involuntary, or that his waiver of his Miranda rights was involuntary. There is no  
19 basis to believe that Defendant's will was overcome by any direct or implied promises, however  
20 slight, or by any threats or coercion or any other improper influence.

21 Defendant has failed to demonstrate that his statements were involuntary or obtained in  
22 violation of Miranda. To the extent that Defendant's Motion seeks the suppression of his  
23 statements, that motion is without merit and must be denied.

24 **CONCLUSION:**

25 Defendant's Motion provides no basis to believe that his constitutional rights were  
26 violated; that any evidence or any of his statements were the product of any improper state conduct.  
27 He has failed to demonstrate that suppression is either warranted by the law, or that the cost-

1 benefit analysis required to be performed prior to applying that remedy results in a conclusion that  
2 suppression is appropriate in these matters. Defendant's Motion is wholly without merit and, after  
3 the State's presentation at the Evidentiary Hearing, must be denied.

4 RESPECTFULLY SUBMITTED this 9th day of September, 2016.

5 COCHISE COUNTY ATTORNEY

6 By: 

7 ROGER H. CONTRERAS  
8 Deputy County Attorney

9 Copy of the foregoing  
10 mailed/delivered/faxed  
11 this 9th day of September,  
12 2016, to:

13 The Honorable Wallace R. Hoggatt  
14 Judge of the Superior Court  
15 Division III  
16 Bisbee, Arizona 85603  
17 *Via Courthouse Distribution Box*

18 Cochise County Legal Defender's Office  
19 Attn: David SM. Shapiro, Esq.  
20 Assistant Legal Defender  
21 Bisbee, Arizona 85603  
22 Attorney for Defendant  
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